

1.

CASE #	CASE NAME	HEARING NAME
CVPS2504351	MCDONALD, AN INDIVIDUAL, VS WALTER FAMILY PARTNERSHIP, A CALIFORNIA LIMITED PARTNERSHIP	MOTION TO COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES, SET TWO FROM PLAINTIFF ELIZABETH MCDONALD BY WALTER FAMILY PARTNERSHIP, A CALIFORNIA LIMITED PARTNERSHIP

Tentative Ruling: No tentative ruling. Motion was vacated and case dismissed by Defendant.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2504351	MCDONALD, AN INDIVIDUAL, VS WALTER FAMILY PARTNERSHIP, A CALIFORNIA LIMITED PARTNERSHIP	MOTION TO COMPEL PLAINTIFF'S FURTHER RESPONSES TO REQUESTS FOR ADMISSIONS, SET TWO BY WALTER FAMILY PARTNERSHIP, A CALIFORNIA LIMITED PARTNERSHIP

Tentative Ruling: No tentative ruling. Motion was vacated and case dismissed by Defendant.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2504351	MCDONALD, AN INDIVIDUAL, VS WALTER FAMILY PARTNERSHIP, A CALIFORNIA LIMITED PARTNERSHIP	MOTION TO COMPEL PLAINTIFF'S FURTHER RESPONSES TO REQUESTS FOR PRODUCTION OF DOCUMENTS, SET TWO BY WALTER FAMILY PARTNERSHIP, A CALIFORNIA LIMITED PARTNERSHIP

Tentative Ruling: No tentative ruling. Motion was vacated and case dismissed by Defendant.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2507346	LAWSON VS GENERAL MOTORS LLC	MOTION FOR ATTORNEYS FEES BY GREGORY E. LAWSON

Tentative Ruling: The parties do not dispute that Plaintiff is the prevailing party under this Song-Beverly Act case. This Act contains a mandatory fee-shifting provision. Under Civil Code section 1794(d), "If the buyer prevails in an action under this section, the buyer **shall** be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been *reasonably incurred* by the buyer in connection with the commencement and prosecution of such action." (Emphasis added.) Thus, Plaintiff is entitled to fees under this provision. The only question to be determined by this motion is the amount of the award to Plaintiff.